Comment	Response
intent of the program of expedited housing review. Fees for review should be limited to direct cost of processing.	governments will have the discretion how to set fees and a review process timeline.

4. Programmatic Interpretation

Comment	Response
The legislation explicitly mentions two paths for building plan review through the Building Codes Division (BCD), either by selecting a pre-approved plan by BCD or by submitting your own plan to BCD as a developer. It is clear that the first two paths were intended by the legislation in HB 2258 Section 5 (1), but it is unclear as to whether a third path was originally articulated to the legislature or by the legislature. The legislative record does not indicate having authorized this third pathway for local government building plan review. Having three pathways for building approval is not in line with legislative intent. A presentation given during 2025 legislative session highlighted the program as a state preapproval of building plans, with no mention of local review. The proposed rules establish a much broader regulatory program and would apply to nearly every small residential development statewide, including housing not reviewed or approved through a state pre-approval process. The third “pathway” in this draft rule introduces a parallel process that adds procedural layers rather than delivering clarity and efficiency. The third pathway shifts this responsibility to local governments, introducing more uncertainty about the quickest route to construction. It introduces variety with building officials at all local governments interpreting plans. This change fundamentally alters the nature of the program. Advocate for the removal of this pathway due to its large-scale impact on local development codes and lack of statutory support.	The inclusion of the local review pathway for approval of an Oregon Homes Development in rules allows the Oregon Homes program to be responsive to limitations of the preapproved pathways offered by BCD. This pathway gives an opportunity to developers to maintain existing relationships with local building departments. Local building departments would still issue building permits compliant with state building code and consistent with statuary authorization.
If the Legislature intended to create a program centered on state-approved housing plans, the rules should remain focused on those plans. Just require cities to adopt pre-approved plans, period. If the intent is to shorten the building review, then just create a repository of pre-approved building plans and let the local jurisdictions site the homes as they do now. If the local review pathway is retained, define it with the same specificity as the DCBS-anchored pathways in the statute.	The Oregon Homes program does utilize permit ready plans through the state permit ready plans and master pan program. Multiple jurisdictions within Oregon utilize “permit-ready” plans, and these plans have been utilized to increase housing production. Programs in other states and studies have shown that reducing design costs can shorten development timelines and make smaller-scale housing project more financially feasible.

5. RAC and Rulemaking Process

Comment	Response
The RAC process needs refinement. While RAC members are considered subject matter experts, draft rules have not changed in response to RAC feedback. In many cases, input has been	RAC members are selected to serve based on their subject matter expertise and lived experience. While all input from the RAC is considered by staff when drafting rules, not all input

Comment	Response
dismissed or rejected outright. DLCD should present a draft framework early that reflects input from local governments and developers by incorporating their feedback directly into revisions. Instead of having persons with lived experience participate on the RAC, hold separate community engagement events and accessible venues for community members to provide feedback without needing to navigate highly technical discussions.	collected from the RAC will be directly incorporated into rules. Future rulemaking seeks to include more parallel engagement with community members.
LCDC should ensure the remaining rulemaking process meaningfully and clearly communicated public participation. Complete and transparent administrative records should be shared before significant planning decisions are made. A clear adherence to legislative authority and Oregon's land use statutes and planning processes that improve public trust and reduce unnecessary appeals should be followed.	LCDC holds the value of public participation and makes clear how community members can testify and comment on agenda items. The extension of the public comment period for this rulemaking is an example.
LCDC does not need to adopt any rules, throughout HB 2258 the word may is used not shall. This can be viewed as extra circular rulemaking.	Section (3) of HB 2258 states that LCDC must adopt Oregon Administrative Rules. State legal counsel affirms that LCDC must adopt rules by the legislative mandate of January 1, 2027.
The rules do not need to be adopted in August. Statute requires rules by December 31, 2026. HB 2258 only requires the Commission to adopt initial rules implementing section 2 of the 2025 Act on or before January 1, 2027. LCDC should hold the adoption later in the year. The state of current rules warrant taking more time to get right and listen to more interested parties. This will allow additional time for technical refinement of the phase one rules and consideration where there is overlap between the two bills. There is no need to rush this process particularly when many local partners have expressed concerns.	Oregon Homes is one method among many to address the state's housing crisis. The reason for expediated rule adoption is to operationalize Oregon Homes as soon as possible.
The comment is overall unsupportive of the Oregon Homes program. It does not address real housing needs and the program will not result in more housing units. The objective should be not simply to adopt statewide policies, but to ensure those policies result in housing that can be approved, serviced, financed, and built. The real barrier to housing is the cost of infrastructure. The State is trying to change a system that is functioning as intended. If the intent is to shorten the building review then just create a repository of pre-approved building plans and let the local jurisdictions site the homes as they do now. Oregon Homes will just create another housing program that will contradict other housing codes. Recommend that communities rely on the existing middle-housing regulations to guide development and design. Oregon should not sacrifice sound city planning practices for the sake of housing production alone.	Oregon Homes is one method among many to address various aspects of the state's housing crisis. Affordable and market rate housing developers are often building the same housing development within jurisdictions or across jurisdictions, yet they have to go through a duplicative review process each time to get the plan approved. Even if the plan was approved once before, it goes through a lengthy review process again. Oregon Homes intends to address this issue by allowing affordable and market rate housing developers to meet state established land use and building standards for use on lots that meet specific criteria in order to expedite land use and building code review and approval.
The rules do not address potential housing units that become vacant through "demolition by neglect". There are concerns that infrastructure and utilities such as water and trash are not guaranteed to all community members, especially due to lack of income. Commenter is seeking overall government reforms,	Staff are not able to address these comments as they are outside of the authority and scope of this rulemaking effort.